

Chapter 15 Residential Apartment

15.5 Regulations Applying to the Residential Apartment Zone Category

15.5.1 General

15.5.1.10 Interpretation

(1) Application of General Regulations Section

The regulations in Section 15.5 apply to all lands, uses, **buildings** and **structures** in the Residential Apartment Zone category.

(2) Interpretation of the Residential Apartment Zone Symbol

The zone symbol on the Zoning By-law Map for zones in the Residential Apartment Zone category consists of the letters RA or RAC, indicating the primary land use permitted in the respective zone.

(3) Interpretation of the Zone Label

In the Residential Apartment Zone category, the letters following the zone symbol in the zone label have the following meaning:

- (A) the letter "f" and a numerical value indicates the required minimum **lot frontage** required for a **lot**, in metres;
- (B) the letter "a" and a numerical value indicates the required minimum **lot area** required for a **lot**, in square metres;
- (C) the letters "au" and a numerical value indicates the required minimum **lot area** required for each **dwelling unit** on a **lot**, in square metres;
- (D) the letter "u" and a numerical value indicates the permitted maximum number of **dwelling units** permitted on a **lot**; and
- (E) the letter "d" and a numerical value indicates the permitted maximum floor space index permitted for a **lot**.

15.5.20 Permitted Uses

15.5.20.1 General

(1) Lawfully Existing Public School, Private School

A **lawfully existing public school** or **private school** on a **lot** in the Residential Apartment Zone category is permitted on that **lot**, and:

- (A) any expansion or addition to the **lawfully existing public school** or **private school building** must comply with Section 150.48 and the requirements for the zone in which the **lot** is located; and
- (B) the **lawfully existing public school** or **private school** may be replaced with a new school **building** that complies with Section 150.48 and the requirements for the zone in which the **lot** is located.

15.5.30 Lot Requirements

15.5.30.1 General

(1) Lot Requirements

Additional **lot** requirements are in each zone in the Residential Apartment Zone category.

15.5.30.11 Lot Area Exemptions

(1) Permitted Lot Area for Lawfully Existing Lots

In the Residential Apartment Zone category, if the **lawful lot area** of a **lawfully existing lot** is less than the minimum **lot area** required by this By-law, that **lawful lot area** is the minimum **lot area** for that **lawfully existing lot**.

(2) Additions to Lawfully Existing Buildings

Any addition or extension to a **lawfully existing building** or **structure** on a **lot** referred to in regulation 15.5.30.11(1) must comply with all other regulations in this By-law or be authorized by a Section 45 Planning Act minor variance.

15.5.30.20 Lot Frontage

(1) Minimum Front Lot Line for a Residential Building

In the Residential Apartment Zone category, a **residential building** may not be erected on a **lot** that does not have a **front lot line** of at least 3.5 metres, unless the **lot**:

- (A) abuts a **lane** with a minimum width of 6.0 metres; and
- (B) has a minimum of 3.5 metres of the **rear lot line** abutting the **lane**.

15.5.30.21 Lot Frontage Exemptions

(1) Permitted Lot Frontage for Lawfully Existing Lots

In the Residential Apartment Zone category, if the **lawful lot frontage** of a **lawfully existing lot** is less than the required minimum **lot frontage** by this By-law, that **lawful lot frontage** is the minimum **lot frontage** for that **lawfully existing lot**.

(2) Additions to Lawfully Existing Buildings

Any addition or extension to a **lawfully existing building** or **structure** on a **lot** referred to in regulation 15.5.30.21(1) must comply with all other regulations in this By-law or be authorized by a Section 45 Planning Act minor variance.

15.5.30.40 Lot Coverage

(1) Lot Coverage Exclusion for Permitted Encroachments

In the Residential Apartment Zone category, any part of a **building** or **structure** permitted to encroach into a required minimum **building setback** in regulation 15.5.40.60 is not included in the calculation of **lot coverage**.

(2) Parts of Platforms that are Not Permitted Encroachments

In the Residential Apartment Zone category, any part of a platform without **main walls**, such as a deck, porch, balcony or similar **structure**, that does not encroach into a required minimum **building setback** is not included in the calculation of **lot coverage**, if:

- (A) it is attached to or less than 0.3 metres from a **building**; and
- (B) the **lot area** covered by these **structures** is no more than 5% of the **lot area**.

15.5.30.41 Lot Coverage Exemptions

(1) Permitted Lot Coverage for Lawfully Existing Buildings

In the Residential Apartment Zone category, if the area of a **lot** **lawfully** covered by **lawfully existing buildings** or **structures** is greater than the permitted maximum **lot coverage** by this By-law, the **lawful** percentage of the **lot** covered by those **lawfully existing buildings** or **structures** is the maximum **lot coverage** for those **lawfully existing buildings** or **structures** on that **lot**.

(2) Additions to Lawfully Existing Buildings

Any addition or extension to **lawfully existing buildings** or **structures** referred to in regulation 15.5.30.41(1) must comply with all other regulations in this By-law or be authorized by a Section 45 Planning Act minor variance.

15.5.40 Principal Building Requirements

15.5.40.1 General

(1) Application of this Article

The regulations in Article 15.5.40 apply to **buildings** or **structures** in the Residential Apartment Zone category, other than **ancillary buildings** or **structures** which are subject to Article 15.5.60.

(2) Building Requirements

Additional **building** requirements are in each zone in the Residential Apartment Zone category.

15.5.40.10 Height

(1) Determining the Height of a Building

In the Residential Apartment Zone category the height of a **building** is the distance between the **established grade** and the elevation of the highest point of the **building**.

(2) Height of Specific Structures on a Building

In the Residential Apartment Zone category, the following **structures** on the roof of a **building** may exceed the permitted maximum height for that **building** by:

(A) 1.5 metres for:

- (i) parapets for a **green roof**; and
- (ii) weather vanes; or

(B) 5.0 metres for:

- (i) antennae;
- (ii) flagpoles; and
- (iii) satellite dishes.

(3) Height of Elements for Functional Operation of a Building

In the Residential Apartment Zone category, the following equipment and **structures** on the roof of a **building** may exceed the permitted maximum height for that **building** by 5.0 metres, subject to complying with regulation 15.5.40.10(4):

(A) equipment used for the functional operation of the **building**, such as electrical, utility, mechanical and ventilation equipment;

(B) **structures** or parts of the **building** used for the functional operation of the **building**, such as enclosed stairwells, roof access, maintenance equipment storage, elevator shafts, chimneys, vents, and water supply facilities; and

(C) **structures** that enclose, screen or cover the elements listed in (A) and (B) above.

(4) Height - Horizontal Limits on Elements for Functional Operation of a Building

In the Residential Apartment Zone category, equipment, **structures** or parts of a **building** that exceed the maximum height for a **building**, as permitted by regulation 15.5.40.10(3), must comply with the following:

(A) their total area may cover no more than 30% of the area of the roof, measured horizontally; and

(B) if they are located within 6.0 metres of a **lot line** abutting a **street**, their total horizontal dimension, measured parallel to the **street**, may not exceed 20% of the width of the **building's main walls** facing that **street**.

(5) Height of Rooftop Amenity Space Safety and Wind Protection

In the Residential Apartment Zone category, unenclosed **structures** providing safety or wind protection to rooftop **amenity space** may exceed the permitted maximum height for that **building** by 3.0 metres, if the **structures** are no closer than 2.0 metres from the interior face of any **main wall**.

(6) Limits on Elements for Functional Operation of a Building for Towers

In the Residential Apartment Zone category:

- (A) Despite regulations 15.5.40.10 (3) and (4), equipment, **structures** or parts of a **building** listed in regulation 15.5.40.10 (3) located on the roof of the tower portion of a **building** may exceed the permitted maximum height for that **building** by 6.5 metres, if the total area of all equipment, **structures**, or parts on the roof of the tower portion of the **building** cover no more than 450 square metres, measured horizontally;
- (B) chimneys, pipes, and vents, may further exceed the permitted maximum height in (A) by 3.0 metres; and
- (C) For the purpose of regulation 15.5.40.10(6), a "tower" is the portions of a **building** which collectively enclose the entirety of a **storey** higher than 24.0 metres above the **established grade**, and where the maximum average **gross floor area** of any **storey** located above 24.0 metres does not exceed 750 square metres. [By-law: LPAT PL130592 March 6, 2020]

15.5.40.11 Height Exemptions

(1) Permitted Height for Lawfully Existing Buildings

In the Residential Apartment Zone category, if the **lawful** height of a **lawfully existing building** or **structure** is greater than the permitted maximum height, that **lawful** height is the maximum height for that **lawfully existing building** or **structure**.

(2) Additions to Lawfully Existing Buildings

Any addition or extension to a **lawfully existing building** or **structure** referred to in regulation 15.5.40.11(1) must comply with the permitted maximum height for a **building** or be authorized by a Section 45 Planning Act minor variance.

(3) Alterations to the Roof of Lawfully Existing Buildings

Any alteration to the roof of a **lawfully existing building** referred to in regulation 15.5.40.11(1) may be constructed to the maximum height in regulation 15.5.40.11(1).

15.5.40.40 Floor Area

(1) Gross Floor Area Calculations for an Apartment Building

In the Residential Apartment Zone category, the **gross floor area** of an **apartment building** is reduced by the area in the **building** used for:

- (A) parking, loading and bicycle parking below **established grade**;
- (B) required **loading spaces** and required **bicycle parking spaces** at or above **established grade**;
- (C) storage rooms, washrooms, electrical, utility, mechanical and ventilation rooms in the **basement**;
- (D) shower and change facilities and **bicycle maintenance facilities** required by this By-law for required **bicycle parking spaces**; [By-law: 839-2022]
- (E) indoor **amenity space** required by this By-law;
- (F) elevator shafts;
- (G) garbage shafts;
- (H) mechanical penthouse; and
- (I) exit stairwells in the **building**.

(2) Floor Space Index Calculation

In the Residential Apartment Zone category, the floor space index:

- (A) is the result of the **gross floor area** of a **building** divided by the area of the **lot**; and

- (B) for an **apartment building**, is the result of the **gross floor area**, minus the areas of an **apartment building** listed in regulation 15.5.40.40(1), divided by the area of the **lot**.

15.5.40.41 Floor Area Exemptions

(1) Permitted Floor Space Index for Lawfully Existing Buildings

In the Residential Apartment Zone category, if the **lawful gross floor area** of **lawfully existing buildings** on a **lot** results in a floor space index greater than the permitted maximum floor space index, the **lawful** floor space index resulting from those **lawfully existing buildings** on that **lot** is the maximum floor space index for those **lawfully existing buildings** on that **lot**.

15.5.40.50 Decks, Platforms and Amenities

(1) Interpretation of Platform Walls

In the Residential Apartment Zone category, the exterior sides of a platform, such as a deck, porch, balcony or similar **structure**, attached to or within 0.3 metres of a **building**, are not **main walls** if at least 50% of the exterior sides above the floor are open to the outside.

(2) Platforms in Relation to Building Setbacks

In the Residential Apartment Zone category, a platform without **main walls**, such as a deck, porch, balcony or similar **structure**, attached to or within 0.3 metres of a **building**, must comply with the required minimum **building setbacks** for the zone.

15.5.40.60 Permitted Encroachments

(1) Platforms

Despite regulation 15.5.40.50(2), in the Residential Apartment Zone category, a platform with no **main walls**, such as a deck, porch, balcony or similar **structure**, attached to or less than 0.3 metres from a **building**, is subject to the following:

- (A) a platform with a floor no higher than the first **storey** of the **building** may encroach into a required minimum **building setback** the lesser of 9.5 metres or 50% of the required minimum **building setback** for the yard in which it is located, and if it is located in the **front yard** or **rear yard**, it may be no closer to a **side lot line** than the required **side yard setback**; and
- (B) a platform with a floor that is higher than the first **storey** of the **building** may encroach into the required minimum **building setback** the lesser of 2.5 metres or 50% of the required minimum **building setback** for the yard in which it is located, and if it is located in the **front yard** or **rear yard**, it may be no closer to a **side lot line** than the required **side yard setback**.

(2) Canopies and Awnings

In the Residential Apartment Zone category, a canopy, awning or similar **structure**, with or without structural support, or a roof over a platform which complies with the requirements of regulation 15.5.40.60(1), is subject to the following:

- (A) if it is above a platform which complies with the requirements of regulation 15.5.40.60(1), the roof, canopy, awning or similar **structure** may encroach into the required minimum **building setback** to the same extent as the platform it is covering; and
- (B) if it is not above a platform, it may encroach into a required minimum **building setback** the lesser of 9.5 metres or 50% of the required minimum **building setback** for the yard in which it is located, if it is:
 - (i) covering a **driveway**, walkway or outdoor **amenity space** adjacent to an entrance to the **building**; and
 - (ii) in the **front yard** or **rear yard**, it may be no closer to a **side lot line** than the required **side yard setback**.

(3) Exterior Stairs, Access Ramp and Elevating Device

In the Residential Apartment Zone category:

- (A) exterior stairs providing access to a **building** or **structure** may encroach into a required minimum **building setback**, if the stairs are:
 - (i) no longer than 1.5 horizontal units for each 1.0 vertical unit above the ground at the point where the stairs meet the **building** or **structure**;
 - (ii) no wider than 2.0 metres; and
 - (iii) no closer to a **lot line** than 0.6 metres;
- (B) an uncovered ramp providing access to a **building** or **structure** may encroach into a required minimum **building setback**, if the ramp is:
 - (i) no longer than 15 horizontal units for each 1.0 vertical unit above the ground at the point where the ramp meets the **building** or **structure**;
 - (ii) no wider than 1.5 metres for each sloped ramp segment; and
 - (iii) no closer to a **lot line** than 0.6 metres; and
- (C) an elevating device providing access to a **building** or **structure** may encroach into a required minimum **building setback**, if the elevating device:
 - (i) elevates no higher than the **first floor** of the **building**;
 - (ii) has a maximum area of 3.0 square metres; and
 - (iii) is no closer to a **lot line** than 0.6 metres.

15.5.40.71 Setbacks Exemptions

(1) Permitted Setbacks for Lawfully Existing Buildings and Structures

In the Residential Apartment Zone category, if the **lawful building setback** of a **lawfully existing building** or **structure** is less than the required minimum **building setback** from:

- (A) a **front lot line**, that **lawful building setback** is the minimum **front yard setback** for that **lawfully existing building** or **structure**;
- (B) a **rear lot line**, that **lawful building setback** is the minimum **rear yard setback** for that **lawfully existing building** or **structure**; and
- (C) a **side lot line**, that **lawful building setback** is the minimum **side yard setback** for that **lawfully existing building** or **structure**.

(2) Additions to Lawfully Existing Buildings

Any addition or extension to a **lawfully existing building** or **structure** referred to in regulation 15.5.40.71(1) must comply with the required minimum **building setbacks** or be authorized by a Section 45 Planning Act minor variance.

(3) Transportation Use Along Eglinton Avenue West and Eglinton Avenue East

Regulations 15.10.40.70 (1)(2)(3) and (4) do not apply to a **transportation use** along Eglinton Avenue West and Eglinton Avenue East, provided that setbacks are between 0 and 15 metres. [103-2016] [By-law: 1031-2014]

15.5.40.81 Separation Exemptions

(1) Permitted Separation Between Main Walls for Lawfully Existing Buildings

In the Residential Apartment Zone category, if the **lawful** separation distance between the **main walls** of **lawfully existing buildings** on the same **lot**, or between **main walls** of the same **lawfully existing building**, is less than the required minimum separation distance between **main walls** required by this By-law, that **lawful** separation distance is the minimum separation distance for those **lawful main walls** on those **lawfully existing buildings**.

(2) Additions to Lawfully Existing Buildings - Separation Between Main Walls

Any addition or extension to a **lawfully existing building** referred to in regulation 15.5.40.81(1) must comply with the minimum separation distance between **main walls** required by this By-law or be authorized by a Section 45 Planning Act minor variance.

(3) Permitted Separation from Other Zones for Lawfully Existing Buildings

In the Residential Apartment Zone category, if the **lawful** separation distance between a **lawfully existing apartment building** and a **lot** in an RD or RS zone is less than the required minimum separation distance required by this By-law, that **lawful** separation distance is the minimum separation distance between that **lawfully existing apartment building** and that **lot**.

(4) Additions to Lawfully Existing Buildings - Separation from Other Zones

Any addition or extension to a **lawfully existing apartment building** referred to in regulation 15.5.40.81(3) must comply with the required minimum separation distance from a **lot** in an RD or RS zone required by this By-law or be authorized by a Section 45 Planning Act minor variance.

15.5.50 Yards

15.5.50.10 Landscaping

(1) Landscaping Requirement for an Apartment Building

A **lot** in the Residential Apartment Zone category must have:

- (A) a minimum of 50% of the area of the **lot** for **landscaping**; and
- (B) a minimum of 50% of the **landscaping** area required in (A), above, must be **soft landscaping**.

(2) Landscaping Requirement for an Apartment Building Abutting a Lot in the Residential Zone Category

A **lot** in the Residential Apartment Zone category must have a minimum 1.5 metre wide strip of land for **soft landscaping** along any part of a **lot line** abutting a **lot** in the Residential Zone category.

(3) Landscaping Exclusion for Permitted Encroachments

In the Residential Apartment Zone category, the calculation of **landscaping** or **soft landscaping** required by regulation 15.5.50.10(1) excludes the area of a required minimum **building setback** covered by any part of a **building** or **structure** which is permitted to encroach into a required minimum **building setback** by Clause 15.5.40.60.

(4) Swimming Pools or Similar Ancillary Structures Containing Water Deemed to be Soft Landscaping for Specified Regulations

In the Residential Apartment Zone category, for the calculation of **soft landscaping** required by regulation 15.5.50.10(1), the area of **soft landscaping** may include the water surface area of an outdoor swimming pool or other **ancillary structure** used to hold water, such as fountains or artificial ponds.

15.5.60 Ancillary Buildings and Structures

15.5.60.1 General

(1) Application of this Article

The regulations in Article 15.5.60 apply to **ancillary buildings** or **structures** in the Residential Apartment Zone category, if they are **ancillary** to **dwelling units** or **residential buildings**.

(2) Living Accommodation in Ancillary Buildings

An **ancillary building** in the Residential Apartment Zone category may not be used for living accommodation.

(3) Food or Sanitary Facilities in Ancillary Buildings

An **ancillary building** in the Residential Apartment Zone category may have:

- (A) food preparation facilities and sanitary facilities if the **ancillary building** or **structure** is for indoor **amenity space** required by this By-law; or
- (B) either food preparation facilities or sanitary facilities, but not both, if the **ancillary building** or **structure** is for any other purpose.

(4) Ancillary Building or Structure Construction Timing

In the Residential Apartment Zone category, no above-ground part of an **ancillary building** or **structure** may be erected prior to the erection of the **main walls** and completion of the roof of a **residential building** on the same **lot**.

15.5.60.20 Setbacks

(1) Front Yard Setback for Ancillary Buildings or Structures

The required minimum **front yard setback** for an **ancillary building** or **structure** in the Residential Apartment Zone category is the required minimum **front yard setback** for the **residential building** on the **lot**.

(2) Rear Yard Setback for Ancillary Buildings or Structures

The required minimum **rear yard setback** for an **ancillary building** or **structure** in the Residential Apartment Zone category:

(A) is 0.3 metres, if its:

- (i) height is 2.5 metres or less; and
- (ii) **gross floor area** is 10 square metres or less; or

(B) is half of its height, if its:

- (i) height is greater than 2.5 metres; or
- (ii) **gross floor area** is greater than 10 square metres; except

(C) on a **through lot**, despite (A) and (B) above, is the required minimum **front yard setback** for the **residential building** on the adjacent **lot**, if the **residential building** on the adjacent **lot** fronts on the **street** that abuts the **rear lot line** of the **through lot**.

(3) Side Yard Setback for Ancillary Buildings or Structures

In the Residential Apartment Zone category, the required minimum **side yard setback** for an **ancillary building** or **structure** located:

(A) in a **side yard**, is the required minimum **side yard setback** for the **residential building** on the **lot**;

(B) in a **rear yard** and less than 4.0 metres from the **residential building** on the **lot**, is the required minimum **side yard setback** for the **residential building**; and

(C) in a **rear yard** and 4.0 metres or more from the **residential building** on the **lot**:

(i) is 0.3 metres, if its:

- (a) height is 2.5 metres or less and
- (b) **gross floor area** is 10 square metres or less, or

(ii) is half of its height, if its:

- (a) height is greater than 2.5 metres or
- (b) **gross floor area** is greater than 10 square metres; except

(iii) on a **corner lot**, despite (i) and (ii) above, is the required minimum **front yard setback** for the **residential building** on the adjacent **lot**, if the **residential building** on the adjacent **lot** fronts on the **street** that abuts the **side lot line** of the **corner lot**.

(4) Rear Yard Setback for Swimming Pools or Similar Ancillary Structures Containing Water

Despite regulation 15.5.60.20(2), in the Residential Apartment Zone category, the required minimum **rear yard setback** for an outdoor swimming pool or other **ancillary structure** used to hold water, such as a fountain or artificial pond, with a total water surface area greater than 3.0 square metres, is:

(A) 4.5 metres; and

(B) 7.5 metres, if it is on a **through lot**.

(5) Side Yard Setback for Swimming Pools or Similar Ancillary Structures Containing Water

Despite regulation 15.5.60.20(3), in the Residential Apartment Zone category, the required minimum **side yard setback** for an outdoor swimming pool or other **ancillary structure** used to hold water, such as a fountain or artificial pond, with a total water surface area greater than 3.0 square metres, is:

- (A) 4.5 metres; and
- (B) if it is on a **corner lot**, 7.5 metres from the **side lot line** abutting a **street**.

(6) Parts of an Ancillary Building or Structure to which a Required Building Setback Applies

In the Residential Apartment Zone category, required minimum **ancillary building setback** regulations apply to all parts of an **ancillary building** or **structure** above and below-ground, excluding footings.

15.5.60.30 Separation

(1) Minimum Separation Between Residential Buildings and Ancillary Buildings or Structures of a Certain Size

In the Residential Apartment Zone category, an **ancillary building** or **structure** with a height greater than 2.5 metres, or a **gross floor area** greater than 10 square metres, must be at least 4.0 metres from a **residential building** on the same **lot**.

(2) Separation of Swimming Pools or Similar Ancillary Structures Containing Water from RD Zones

In the Residential Apartment Zone category, an outdoor swimming pool or other **ancillary structure** used to hold water, such as a fountain or artificial pond, with a total water surface area greater than 3.0 square metres, must be at least 12.0 metres from a **lot** in the RD zone.

15.5.60.40 Height

(1) Determining the Height of Ancillary Buildings or Structures

In the Residential Apartment Zone category, the height of an **ancillary building** or **structure** is the distance between **average grade** and the elevation of the highest point of the **ancillary building** or **structure**.

(2) Maximum Height of Ancillary Buildings or Structures

The permitted maximum height of an **ancillary building** or **structure** in the Residential Apartment Zone category is:

- (A) 2.5 metres, if the **ancillary building** or **structure** is less than 4.0 metres from the **residential building** on the **lot**; or
- (B) 4.0 metres in all other cases.

15.5.60.50 Floor Area

(1) Inclusion in Floor Space Index

The **gross floor area** of all **ancillary buildings** on a **lot** in the Residential Apartment Zone category is included for the purpose of calculating the total **gross floor area** and floor space index for the **lot**.

(2) Maximum Floor Area of Ancillary Buildings or Structures Close to Residential Buildings

In the Residential Apartment Zone category, the permitted maximum **gross floor area** of an **ancillary building** located less than 4.0 metres from the **residential building** on the **lot** is 10.0 square metres.

15.5.60.70 Lot Coverage

(1) Lot Coverage Requirement for Ancillary Buildings and Structures

An **ancillary building** or **structure** on a **lot** in the Residential Apartment Zone category, other than the water surface area of an outdoor swimming pool or other **ancillary structure** used to hold water, such as fountains or artificial ponds:

- (A) is included in the overall calculation of **lot coverage**; and

(B) the area of the **lot** covered by all **ancillary buildings** and **structures** may not exceed 10% of the **lot area**.

(2) Lot Coverage Requirement for Swimming Pools or Similar Ancillary Structures Containing Water

In the Residential Apartment Zone category, the water surface area of an outdoor swimming pool or other **ancillary structure** used to hold water, such as fountains or artificial ponds:

- (A) is not included in the calculation of **lot coverage**; and
- (B) the water surface area may not exceed 15% of the **lot area**.

15.5.75 Energy Regulations

15.5.75.1 General

(1) Renewable Energy or Cogeneration Energy Device

In the Residential Apartment Zone category, a device producing **renewable energy** or **cogeneration energy** on a **lot** may not be in a **front yard** or a **side yard** that abuts a **street**.

(2) Cogeneration Energy Device

In the Residential Apartment Zone category, a **cogeneration energy** device must be inside a permitted **building**.

(3) Geo-energy Device

In addition to the requirements of regulation 15.5.75.1(1), in the Residential Apartment Zone category any above-ground part of a **geo-energy** device must comply with the requirements for:

- (A) a **building** or **structure** on the **lot**; or
- (B) if it is on a **lot** with a **residential building**, an **ancillary building** or **structure** on the **lot**.

(4) Solar Energy Device

In the Residential Apartment Zone category, a photovoltaic **solar energy** device or a thermal **solar energy** device that is:

- (A) on a **building**:
 - (i) must comply with the required minimum **building setbacks** for a **building** on the **lot**; and
 - (ii) no part of the device may be higher than 2.0 metres above the permitted maximum height for the **building**; and
- (B) ground mounted, must comply with the requirements for:
 - (i) a **building** or **structure** on the **lot**; and
 - (ii) an **ancillary building** or **structure**, if it is on a **lot** with a **residential building**.

(5) Wind Energy Device

In the Residential Apartment Zone category, a **wind energy** device must comply with the following:

- (A) there may be no more than one **wind energy** device on a **lot**;
- (B) all parts of a **wind energy** device on a **lot** must comply with the required minimum **building setbacks** for a **building** on the **lot**; and
- (C) no part of a **wind energy** device may be higher than:
 - (i) 3.0 metres above the permitted maximum height for the **building** if:
 - (a) the permitted maximum height for the **building** is less than 24.0 metres; or
 - (b) the **lot** abuts a **lot** in the Residential Zone category; and
 - (ii) in all other cases, 5.0 metres above the permitted maximum height for the **building**.

15.5.80 Parking

15.5.80.1 General

(1) Use of Required Parking Space

A **parking space** required by this By-law for a use in the Residential Apartment Zone category must be available for the use for which it is required.

(2) Charging for Visitor Parking

(Deleted by LPAT Order PL130592, March 16, 2020) [By-law: LPAT PL130592 March 16, 2020]

15.5.80.10 Location

(1) Location of Required Parking Spaces

In the Residential Apartment Zone category, a **parking space** must be on the same **lot** as the use for which the **parking space** is required.

(2) Parking Space Location for Apartment Buildings

A minimum of 50% of the required **parking spaces** for an **apartment building** in the Residential Apartment Zone category, other than required visitor **parking spaces**, must be in a **building** or underground **structure**.

(3) Commercial Vehicle Parking Restriction

A **parking space** on a **lot** in the Residential Apartment Zone category may be used for a commercial **vehicle**, if:

- (A) an owner or tenant of a **dwelling unit** on the **lot** is the owner or operator of the **vehicle**; and
- (B) it is located within a wholly enclosed **building**.

(4) Commercial Vehicle Parking Not Permitted in Yards

A **parking space** located outside of a **building** in the Residential Apartment Zone category may not be used for:

- (A) commercially licensed **vehicles**;
- (B) construction **vehicles**;
- (C) dump trucks;
- (D) agricultural **vehicles**;
- (E) repair or towing **vehicles**;
- (F) tracked **vehicles**;
- (G) **vehicles** with a traction engine;
- (H) **vehicles** designed to run only on rails; and
- (I) **vehicles** equipped with more than six wheels, excluding spare wheels.

15.5.80.20 Setbacks

(1) Parking Space to be Set Back from a Lot Line

In the Residential Apartment Zone category, a **parking space** that is not located in a **building** or **structure** must be at least 0.5 metres from a **lot line**.

15.5.80.30 Separation

(1) Parking Space Separation from Apartment Building

In the Residential Apartment Zone category, a surface **parking space** must be at least 3.0 metres from any **main wall** of an **apartment building**.

15.5.100 Access to Lot

15.5.100.1 General

(1) Driveway Width

In the Residential Apartment Zone category, a **driveway** exclusive of layby areas, **vehicle** ramps to below-ground parking areas, turnaround areas and required auxiliary turn lanes within 10.0 metres of a **lot line** abutting a **street** must have:

- (A) A minimum width of 3.0 metres for each lane; and
- (B) A maximum width of 6.0 metres. [By-law: LPAT PL130592 May 8, 2019]

(2) Driveway Access to Apartment Buildings

If an **apartment building** in the Residential Apartment Zone category has 25 **dwelling units** or more, an unobstructed **vehicle** access must be provided between the **street** and the principal pedestrian entrance to the **building** so that a **vehicle** can enter and leave the **lot** while driving forward in one continuous movement.

15.5.150 Waste

15.5.150.1 General

(1) Waste and Recyclable Materials Storage

In the Residential Apartment Zone category, all waste and **recyclable material** must be stored in a wholly enclosed **building**, if a **building** is constructed pursuant to a building permit issued more than three years after May 9, 2013.

15.10 Residential Apartment Zone (RA)

15.10.1 General

15.10.1.10 Interpretation

(1) Application of This Section

The regulations in Section 15.10 apply to all lands, uses, **buildings** and **structures** in the RA zone.

15.10.20 Permitted Uses

15.10.20.10 Permitted Use

(1) Use - RA Zone

The following uses are permitted in the RA zone:

Ambulance Depot

Dwelling Unit in a permitted **residential building** type in Clause 15.10.20.40.

Fire Hall

Municipal Shelter

Park

Police Station [By-law: 545-2019]

15.10.20.20 Permitted Use - with Conditions

(1) Use with Conditions - RA Zone

Use with Conditions - RA Zone

The following uses are permitted in the RA zone if they comply with the specific conditions associated with the reference number(s) for each use in Clause 15.10.20.100:

Cogeneration Energy (1)

Community Centre (2)

Crisis Care Shelter (3)

Day Nursery (4)

Group Home (5)

Home Occupation (6)

Library (2)

Multi-tenant House (14)

Nursing Home (7)

Place of Worship (8)

Private Home Daycare (9)

Public Utility (10, 11)

Renewable Energy (1)

Residential Care Home (5)

Respite Care Facility (12)

Retail Store (13)

Retirement Home (7)

Secondary Suite (15)

Seniors Community House (16)

Short-term Rental (18)

Transportation Use (17)

[By-law 1453-2017]

[By-law: 545-2019] [By-law: 156-2023]

15.10.20.40 Permitted Building Types

(1) **Permitted Residential Building Types - RA Zone**

In the RA zone, a **dwelling unit** is permitted in the following **residential building types**:

(A) **Apartment Building.**

15.10.20.100 Conditions

(1) Cogeneration Energy Production or Renewable Energy Production

In the RA zone, **cogeneration energy** production or **renewable energy** production must be in combination with another permitted use on the **lot**, and comply with all Municipal, Provincial and Federal by-laws, statutes and regulations.

(2) Community Centre or Library

In the RA zone, a **community centre** or a library must be on a **lot** that abuts a major **street** on the Policy Areas Overlay Map.

(3) Crisis Care Shelter

In the RA zone, a **crisis care shelter** must comply with the specific use regulations in Section 150.20. [By-law: 545-2019]

(4) Day Nursery

A **day nursery** in the RA zone must comply with the specific use regulations in Section 150.45.

(5) Group Home or Residential Care Home

In the RA zone, a **group home** or a **residential care home** must comply with the specific use regulations in Section 150.15.

(6) Home Occupation

A **home occupation** in the RA zone must comply with the specific use regulations in Section 150.5.

(7) Nursing Home or Retirement Home

In the RA zone, a **nursing home**, **retirement home** or a combination of these two uses, must be on a **lot** that has a **front lot line** or **side lot line** abutting:

(A) a major **street** on the Policy Areas Overlay Map; or

(B) a **street** which intersects a major **street** on the Policy Areas Overlay Map, and the **lot** is located, in whole or in part, within 80 metres of that intersection.

(8) **Place of Worship**

In the RA zone:

(A) a **place of worship** may be on a **lot** with an **apartment building**, if the **lot** has 100 or more **dwelling units** in one or more **apartment buildings**, and the **place of worship**:

(i) is inside an **apartment building**;

(ii) is not above the first **storey** of the **apartment building**;

(iii) does not exceed 30.0 square metres in **interior floor area** for the first 100 **dwelling units** in the **apartment building**, which may be increased by 10.0 square metres for each additional 50 **dwelling units** in excess of 100, to a maximum of 110.0 square metres; and

(iv) access to the **place of worship** must be from within the **apartment building**, unless it is on a **lot** with a **front lot line** or **side lot line** abutting a major **street** on the Policy Areas Overlay Map;

(B) if a **place of worship** is not on a **lot** with an **apartment building**, it must:

(i) comply with the specific use regulations in Section 150.50;

(ii) be on a **lot** with:

(a) a **front lot line** or **side lot line** abutting a major **street** on the Policy Areas Overlay Map; and

(b) a **lot area** of at least 2,000 square metres; and

- (iii) be in a **building** with no more than 3,000 square metres of **gross floor area**; and
(C) a **lawfully existing place of worship** is exempt from the requirements of regulation 15.10.20.100(8)(B) (ii) and (iii).

(9) Private Home Daycare

A children's play area for a **private home daycare** in the RA zone:

- (A) must be fenced; and
- (B) may be no closer to a **lot line** abutting a **street** than 6.0 metres.

(10) Public Utility

In the RA zone, a **public utility** may not be:

- (A) a sewage treatment plant;
- (B) a water filtration plant; or
- (C) an above-ground water reservoir.

(11) Public Utility

In the RA zone, a **public utility** must be enclosed by walls and comply with the permitted maximum **lot coverage**, required minimum **building setbacks** and permitted maximum **building** height for the RA zone if it is:

- (A) a hydro electrical transformer station; or [By-law: OMB PL130592 February 7, 2017]
- (B) a natural gas regulator station.

(12) Respite Care Facility

In the RA zone, a **respite care facility** must be combined with a **nursing home** or **retirement home**.

(13) Retail Stores in Apartment Buildings

In the RA zone, a **retail store** may be on a **lot** with 100 or more **dwelling units** in one or more **apartment buildings**, subject to the following:

- (A) there may be only one **retail store** in an **apartment building**;
- (B) it must be located inside the **apartment building**;
- (C) it may not be above the first **storey** of the **apartment building**;
- (D) access to the **retail store** must be from within the **apartment building**, unless it is on a **lot** with a **front lot line** or a **side lot line** abutting a major **street** on the Policy Areas Overlay Map;
- (E) there may be no outside display of goods; and
- (F) the **interior floor area** of the **retail store** may not exceed 30.0 square metres for the first 100 **dwelling units** in the **apartment building**, which may be increased by 10.0 square metres for each additional 50 **dwelling units** in excess of 100, to a maximum of 110.0 square metres.

(14) Multi-tenant House

A **multi-tenant house** in the RA zone must comply with the specific use regulations in Section 150.25. [By-law: 156-2023]

(15) Secondary Suite

A **secondary suite** in the RA zone must comply with the specific use regulations in Section 150.10.

(16) Seniors Community House

A **seniors community house** in the RA zone must comply with the specific use regulations in Section 150.30.

(17) Transportation Use

A **building** or **structure** on a **lot** in the RA zone and used as a **transportation use** must comply with all requirements for a **building** on that **lot**.

(18) Short-term Rental

A **short-term rental** in the RA zone must comply with the specific use regulations in Section 150.13. [By-law: 1453-2017]

15.10.30 Lot Requirements

15.10.30.10 Lot Area

(1) Minimum Lot Area

In the RA zone:

- (A) if a zone label includes the letter "a", on the Zoning By-law Map, the numerical value following the letter "a" is the required minimum **lot area**, in square metres; and
- (B) if the zone label on the Zoning By-law Map does not include an "a" value on the Zoning By-law Map, the required minimum **lot area**, in square metres, is the required minimum **lot frontage** multiplied by 30 metres.

(2) Minimum Lot Area for Each Dwelling Unit in an Apartment Building

If a zone label applying to a **lot** in the RA zone includes the letters "au", on the Zoning By-law Map, the numerical value following the letters "au" is the required minimum **lot area**, in square metres, for each **dwelling unit** in an **apartment building**.

15.10.30.20 Lot Frontage

(1) Minimum Lot Frontage

In the RA zone:

- (A) if a zone label includes the letter "f", on the Zoning By-law Map, the numerical value following the letter "f" is the required minimum **lot frontage**, in metres; and
- (B) if the zone label on the Zoning By-law Map does not include an "f" value on the Zoning By-law Map, the required minimum **lot frontage** is 24.0 metres.

15.10.30.40 Lot Coverage

(1) Maximum Lot Coverage

In the RA zone:

- (A) if a **lot** is in an area with a numerical value on the Lot Coverage Overlay Map, that numerical value is the permitted maximum **lot coverage**, as a percentage of the **lot area**; and
- (B) if a **lot** is not in an area with a numerical value on the Lot Coverage Overlay Map, no **lot coverage** applies.

15.10.40 Principal Building Requirements

15.10.40.1 General

(1) Application of this Article

The regulations in Article 15.10.40 apply to **buildings** or **structures** in the RA zone, other than **ancillary buildings** or **structures** which are subject to Article 15.5.60.

(2) Number of Dwelling Units on a Lot

If a zone label applying to a **lot** in the RA zone includes the letter "u", on the Zoning By-law Map, the numerical value following the letter "u" is the permitted maximum number of **dwelling units** on the **lot**.

15.10.40.10 Height

(1) Maximum Height

The permitted maximum height for a **building** or **structure** on a **lot** in the RA zone is:

- (A) the numerical value, in metres, following the letters "HT" on the Height Overlay Map; or

- (B) 24.0 metres, if the **lot** is in an area with no numerical value following the letters "HT" on the Height Overlay Map.

(2) Maximum Number of Storeys

The permitted maximum number of **storeys** in a **building** on a **lot** in the RA zone is:

- (A) the numerical value following the letters "ST" on the Height Overlay Map; and
- (B) if the **lot** is in an area with no numerical value following the letters "ST" on the Height Overlay Map, the permitted maximum number of **storeys** is not limited by this regulation.

15.10.40.40 Floor Area

(1) Floor Space Index

In the RA zone, the permitted maximum floor space index is:

- (A) the numerical value following the letter "d" in the zone label on the Zoning By-law Map; and
- (B) if the zone label on the Zoning By-law Map does not include a "d" value on the Zoning By-law Map, the floor space index is not limited by this regulation.

15.10.40.50 Decks, Platforms and Amenities

(1) Amenity Space for an Apartment Building

In the RA zone, an **apartment building** with 20 or more **dwelling units** must provide **amenity space** at a minimum rate of 4.0 square metres for each **dwelling unit**, of which:

- (A) at least 2.0 square metres for each **dwelling unit** is indoor **amenity space** located at or above **established grade**; [By-law: 1353-2015]
- (B) at least 40.0 square metres is outdoor **amenity space** in a location adjoining or directly accessible to the indoor **amenity space**; and
- (C) no more than 25% of the outdoor component may be a **green roof**.

15.10.40.70 Setbacks

(1) Minimum Front Yard Setback

The required minimum **front yard setback** in the RA zone is 6.0 metres.

(2) Minimum Rear Yard Setback

The required minimum **rear yard setback** in the RA zone is 7.5 metres.

(3) Minimum Side Yard Setback

The required minimum **side yard setback** in the RA zone is 7.5 metres.

(4) Rear Yard Setbacks and Side Yard Setbacks in Relation to the Height of an Apartment Building

Despite regulation 15.10.40.70(2) and (3), for any portion of an **apartment building** in the RA zone with a height greater than 11.0 metres, the required minimum **rear yard setback** and required minimum **side yard setbacks** for each portion of the **building** above 11.0 metres in height must be increased by 1.0 metre for each additional 2.0 metres, or part thereof, above 11.0 metres in height.

15.10.40.80 Separation

(1) Distance Between Main Walls of the Same Residential Building

In the RA zone, if a **residential building** has **main walls** where a line projected outward at a right angle from one of the **main walls** intercepts another **main wall** of the same **building**, the required minimum above-ground separation distance between those **main walls** is:

- (A) for any portion of the **building** with a height equal to or less than 11.0 metres:

- (i) 5.5 metres if there are no openings to **dwelling units** in one or more of those **main walls**; and
- (ii) 11.0 metres if each **main wall** has an opening to a **dwelling unit**; and
- (B) for any portion of the **building** with a height greater than 11.0 metres, a distance equal to the average height of those **main walls**.

(2) Distance Between Residential Buildings on the Same Lot

In the RA zone, if two or more **residential buildings** are located on the same **lot**, the required minimum above-ground separation distance between the **main walls** of the respective **buildings** is:

- (A) for any portion of the **buildings** with a height equal to or less than 11.0 metres:
 - (i) 5.5 metres if there are no openings to **dwelling units** in the **main wall** of one or more of the **buildings**; and
 - (ii) 11.0 metres if each **main wall** has an opening to a **dwelling unit**; and
- (B) for any portion of the **buildings** with a height greater than 11.0 metres, a distance equal to the average height of those **buildings**.

(3) Apartment Building Separation from RD and RS Zones

An **apartment building** in the RA zone must be at least 15.0 metres from a **lot** in an RD or RS zone.

15.20 Residential Apartment Commercial (RAC)

15.20.1 General

15.20.1.10 Interpretation

(1) Application of This Section

The regulations in Section 15.20 apply to all lands, uses, **buildings** and **structures** in the RAC zone.

15.20.20 Permitted Uses

15.20.20.10 Permitted Use

(1) Use - RAC Zone

The following uses are permitted in the RAC zone:

Ambulance Depot

Dwelling Unit in a permitted **residential building** type in Clause 15.20.20.40.

Fire Hall

Municipal Shelter

Park

Police Station [By-law: 545-2019]

15.20.20.20 Permitted Use - with Conditions

(1) Use with Conditions - RAC Zone

The following uses are permitted in the RAC zone if they comply with the specific conditions associated with the reference number(s) for each use in Clause 15.20.20.100:

Art Gallery (1)

Artist Studio (1)

Automated Banking Machine (2)

Club (1)

Cogeneration Energy (3)

Community Centre (4)

Crisis Care Shelter (5)

Custom Workshop (1)

Day Nursery (6)

Eating Establishment (1, 7)

Education Use (1)

Financial Institution (1)

Group Home (8)

Home Occupation (9)

Library (4)

Multi-tenant House (18)

Market Garden (10)

Medical Office (1)

Nursing Home (11)

Office (1)

Outdoor Patio (23)

Outdoor Sales or Display (12)

Performing Arts Studio (1)

Personal Service Shop (1)

Pet Services (1)

Place of Worship (13)

Production Studio (1)
Private Home Daycare (14)
Public Utility (15, 16)
Recreation Use (1)
Religious Education Use (1)
Renewable Energy (3)
Residential Care Home (8)
Respite Care Facility (17)
Retail Store (1)
Retail Service (1)
Retirement Home (11)
Secondary Suite (19)
Seniors Community House (20)
Service Shop (1)
Short-term Rental (22)
Take-out Eating Establishment (1)
Transportation Use (21)
Veterinary Hospital (1)
[By-law: 1453-2017]
[By-law: 545-2019]
[By-law: 156-2023] [By-law: 1153-2023]

15.20.20.40 Permitted Building Types

(1) Permitted Building Types for Dwelling Units

In the RAC zone the following **residential building** types for **dwelling units** are permitted:

(A) **Apartment Building**. [By-law: 1092-2021]

15.20.20.100 Conditions

(1) Art Gallery and Other Commercial and Non-Residential Uses

In the RAC zone, an **art gallery**, **artist studio**, **club**, **custom workshop**, **eating establishment**, **education use**, **financial institution**, medical office, office, **performing arts studio**, **personal service shop**, **pet services**, **production studio**, **recreation use**, **religious education use**, **retail store**, **retail service**, **service shop**, **takeout eating establishment** or a **veterinary hospital** may be located on a **lot** with 100 or more **dwelling units** in one or more **apartment buildings**, subject to the following:

- (A) they are not located above the first **storey** of an **apartment building**;
- (B) a **service shop** or a **veterinary hospital** are located in **non-residential buildings** on the **lot**;
- (C) if located in an **apartment building**, the uses may not occupy, in total, more than 50% of the **interior floor area** of the first **storey** in that **apartment building**;
- (D) the total **interior floor area** of the uses may not exceed 400 square metres for the first 100 **dwelling units** on the **lot**, which may be increased by 50 square metres of **interior floor area** for each additional 25 **dwelling units** in excess of 100, to a maximum of 1,000 square metres of **interior floor area**;
- (E) the **interior floor area** of an individual establishment may not exceed 200 square metres; and
- (F) the calculation of total **interior floor area** is reduced by the area in the **building** used for:
 - (i) the same **building** areas as provided for in the calculation of **gross floor area** for an **apartment building** in regulation 15.5.40.40(1); and
 - (ii) in the case of an **eating establishment** or a **take-out eating establishment**, the areas used for associated offices, storage rooms, and staff rooms located in the **basement**. [By-law: 0572-2014] [By-law: 0572-2014; 1092-2021]

(2) Automated Banking Machine

In the RAC zone, an **automated banking machine** must be located in a **building**.

(3) Cogeneration Energy Production or Renewable Energy Production

In the RAC zone, **cogeneration energy** production or **renewable energy** production must be in combination with another permitted use on the **lot**, and comply with all Municipal, Provincial and Federal by-laws, statutes and regulations.

(4) Community Centre or Library

In the RAC zone:

(A) a **community centre** or a library may be on a **lot** with an **apartment building**, if the **lot** has 100 or more **dwelling units** in one or more **apartment buildings**, and:

(i) if the **community centre** or library is located in an **apartment building**, they may not:

(a) be above the first **storey**;

(b) in total, occupy more than 50% of the **interior floor area** of the first **storey**; and

(c) in total, exceed 600 square metres in **interior floor area**; and

(ii) if the **community centre** or library is not in an **apartment building**, they may not, in total, exceed 600 square metres in **interior floor area**; and

(B) if a **community centre** or a library is not on a **lot** with an **apartment building**, it must be on a **lot** with a **front lot line** or **side lot line** abutting a major **street** on the Policy Areas Overlay Map.

(5) Crisis Care Shelter

In the RAC zone, a **crisis care shelter** must comply with the specific use regulations in Section 150.20. [By-law: 545-2019]

(6) Day Nursery

A **day nursery** in the RAC zone must comply with the specific use regulations in Section 150.45.

(7) Eating Establishment - Other Uses

In the RAC zone, other uses with an **eating establishment**:

(A) may occupy a maximum of 6% of the total **interior floor area** of the **eating establishment** to a maximum of 12 square metres; and

(B) must be entirely within the **building** where the **eating establishment** is located.

(8) Group Home or Residential Care Home

In the RAC zone, a **group home** or a **residential care home** must comply with the specific use regulations in Section 150.15.

(9) Home Occupation

A **home occupation** in the RAC zone must comply with the specific use regulations in Section 150.5.

(10) Market Garden

In the RAC zone, a market garden may not be used for the growing and harvesting of shrubs or trees for the purpose of sale. [By-law: 1774-2019]

(11) Nursing Home or Retirement Home

In the RAC zone, a **nursing home**, **retirement home** or a combination of these two uses, must be on a **lot** that has a **front lot line** or **side lot line** abutting:

(A) a major **street** on the Policy Areas Overlay Map; or

(B) a **street** which intersects a major **street** on the Policy Areas Overlay Map, and the **lot** is located, in whole or in part, within 80 metres of that intersection.

(12) Outdoor Sales or Display

In the RAC zone, the outdoor sale or display of goods or commodities is subject to the following:

(A) the goods or commodities may not be displayed closer to a **dwelling unit** than 7.5 metres;

(B) despite (A), above, the outdoor sale or display of goods or commodities in combination with a permitted use inside an **apartment building** may be located abutting that use if the area for the outdoor sale or display of those goods or commodities does not exceed 10 square metres;

(C) the goods or commodities may not be displayed closer to a **rear lot line** or a **side lot line** than:

- (i) 3.0 metres where the **lot line** abuts a **street**; and
- (ii) 7.5 metres in all other cases;
- (D) the total area for the outdoor sale or display of goods or commodities may not exceed 400 square metres for the first 100 **dwelling units** on the **lot**, which may be increased by 50 square metres for each additional 25 **dwelling units** in excess of 100, to a maximum of 1,000 square metres; and
- (E) the area for the outdoor sale or display of goods or commodities may not be located in areas required by this By-law for parking, loading, **driveways** or outdoor **amenity space**. [By-law: 0572-2014]

(13) **Place of Worship**

In the RAC zone:

- (A) a **place of worship** may be on a **lot** with an **apartment building**, if the **lot** has 100 or more **dwelling units** in one or more **apartment buildings**, and:
 - (i) if the **place of worship** is inside an **apartment building**, it may not:
 - (a) be above the first **storey**;
 - (b) occupy more than 50% of the **interior floor area** of the first **storey**; and
 - (c) exceed 110 square metres in **interior floor area**; and [By-law: 0572-2014]
 - (ii) if the **place of worship** is not inside an **apartment building**, it may not exceed 110 square metres in **interior floor area**; [By-law: 0572-2014]
- (B) if a **place of worship** is not on a **lot** with an **apartment building**, it must:
 - (i) comply with the specific use regulations in Section 150.50;
 - (ii) be on a **lot** with:
 - (a) a **front lot line** or **side lot line** abutting a major **street** on the Policy Areas Overlay Map; and
 - (b) a **lot area** of at least 2,000 square metres; and
 - (iii) be in a **building** with no more than 3,000 square metres of **gross floor area**; and
- (C) a **lawfully existing place of worship** is exempt from the requirements of regulation 15.20.20.100(13)(B) (ii) and (iii).

(14) **Private Home Daycare**

A children's play area for a **private home daycare** in the RAC zone:

- (A) must be fenced; and
- (B) may be no closer to a **lot line** abutting a **street** than 6.0 metres.

(15) **Public Utility**

In the RAC zone, a **public utility** may not be:

- (A) a sewage treatment plant;
- (B) a water filtration plant; or
- (C) an above-ground water reservoir.

(16) **Public Utility**

In the RAC zone, a **public utility** must be enclosed by walls and comply with the permitted maximum **lot coverage**, required minimum **building setbacks** and permitted maximum height for a **building** in the RAC zone if it is:

- (A) a hydro electric transformer station; or [By-law: OMB PL130592 February 7, 2017]
- (B) a natural gas regulator station.

(17) **Respite Care Facility**

In the RAC zone, a **respite care facility** must be combined with a **nursing home** or **retirement home**.

(18) **Multi-tenant House**

A **multi-tenant house** in the RAC zone must comply with the specific use regulations in Section 150.25. [By-law: 156-2023]

(19) Secondary Suite

A **secondary suite** in the RAC zone must comply with the specific use regulations in Section 150.10.

(20) Seniors Community House

A **seniors community house** in the RAC zone must comply with the specific use regulations in Section 150.30.

(21) Transportation Use

A **building** or **structure** on a **lot** in the RAC zone and used as a **transportation use** must comply with all requirements for a **building** on that **lot**.

(22) Short-term Rental

A **short-term rental** in the RAC zone must comply with the specific use regulations in Section 150.13. [By-law: 1453-2017]

(23) Outdoor Patio

In the RAC zone:

- (A) an **outdoor patio** must be combined with one of the following uses and be located on the same **lot** or an abutting **lot** that permits an **outdoor patio**:
 - (i) **Club**;
 - (ii) **Eating Establishment**;
 - (iii) **Recreation Use**;
 - (iv) **Retail Store**; and
 - (v) **Take-out Eating Establishment**.
- (B) the permitted maximum area of an **outdoor patio** is the greater of:
 - (i) 50.0 square metres; or
 - (ii) 50 percent of the **interior floor area** of the **premises** it is combined with.
- (C) an **outdoor patio** may not be used to provide entertainment such as performances, music and dancing;
- (D) an **outdoor patio** must be set back at least 10.0 metres from a **lot** in the Residential Zone category;
- (E) despite (D) above, an **outdoor patio** located above the first **storey** of the **building**, must be at least 40.0 metres:
 - (i) measured horizontally, from a **lot** in the Residential Zone category or Residential Apartment Zone category.
- (F) an **outdoor patio** located on a pedestrian walkway must maintain a pedestrian clearance with a minimum width of 1.5 metres along its entire length; and
- (G) an **outdoor patio** in the **rear yard** of a **lot** which abuts a **lot** in the Residential Zone category must have a fence installed along the portion of the **outdoor patio** parallel to the **rear lot line**. [By-law: 1153-2023]

15.20.30 Lot Requirements

15.20.30.10 Lot Area

(1) Minimum Lot Area

In the RAC zone:

- (A) if a zone label includes the letter "a", on the Zoning By-law Map, the numerical value following the letter "a" is the required minimum **lot area**, in square metres; and
- (B) if the zone label does not include an "a" value on the Zoning By-law Map, the required minimum **lot area**, in square metres, is the required minimum **lot frontage** multiplied by 30 metres.

(2) Minimum Lot Area for Each Dwelling Unit in an Apartment Building

If a zone label applying to a **lot** in the RAC zone includes the letters "au", on the Zoning By-law Map, the numerical value following the letters "au" is the required minimum **lot area**, in square metres, required for each **dwelling unit** in an **apartment building**.

15.20.30.20 Lot Frontage

(1) Minimum Lot Frontage

In the RAC zone:

- (A) if a zone label includes the letter "f", on the Zoning By-law Map, the numerical value following the letter "f" is the required minimum **lot frontage**, in metres; and
- (B) if the zone label does not include an "f" value on the Zoning By-law Map, the required minimum **lot frontage** is 24.0 metres.

15.20.30.40 Lot Coverage

(1) Maximum Lot Coverage

In the RAC zone:

- (A) if a **lot** in the RAC zone is in an area with a numerical value on the Lot Coverage Overlay Map, that numerical value is the permitted maximum **lot coverage**, as a percentage of the **lot area**; and
- (B) if a **lot** in the RAC zone is not in an area with a numerical value on the Lot Coverage Overlay Map, no **lot coverage** applies.

15.20.40 Principal Building Requirements

15.20.40.1 General

(1) Application of this Article

The regulations in Article 15.20.40 apply to **buildings** or **structures** in the RAC zone, other than **ancillary buildings** or **structures** which are subject to Article 15.5.60.

(2) Number of Dwelling Units on a Lot

If a zone label applying to a **lot** in the RAC zone includes the letter "u", on the Zoning By-law Map, the numerical value following the letter "u" is the permitted maximum number of **dwelling units** on the **lot**.

15.20.40.10 Height

(1) Maximum Height

The permitted maximum height for a **building** or **structure** on a **lot** in the RAC zone is:

- (A) the numerical value, in metres, following the letters "HT" on the Height Overlay Map; or
- (B) 24.0 metres, if the **lot** is in an area with no numerical value following the letters "HT" on the Height Overlay Map.

(2) Maximum Number of Storeys

The permitted maximum number of **storeys** in a **building** on a **lot** in the RAC zone is:

- (A) the numerical value following the letters "ST" on the Height Overlay Map; and
- (B) if the **lot** is in an area with no numerical value following the letters "ST" on the Height Overlay Map, the number of **storeys** is not limited by this regulation.

15.20.40.40 Floor Area

(1) Floor Space Index

In the RAC zone, the permitted maximum floor space index is:

- (A) the numerical value following the letter "d" in the zone label on the Zoning By-law Map; and
- (B) if the zone label on the Zoning By-law Map does not include a "d" value on the Zoning By-law Map, the floor space index is not limited by this regulation.

15.20.40.50 Decks, Platforms and Amenities

(1) Amenity Space for an Apartment Building

In the RAC zone, an **apartment building** with 20 or more **dwelling units** must provide **amenity space** at a minimum rate of 4.0 square metres for each **dwelling unit**, of which:

- (A) at least 2.0 square metres for each **dwelling unit** is indoor **amenity space**;"
- (B) at least 40.0 square metres is outdoor **amenity space** in a location adjoining or directly accessible to the indoor **amenity space**; and
- (C) no more than 25% of the outdoor component may be a **green roof**.

15.20.40.70 Setbacks

(1) Minimum Front Yard Setback

The required minimum **front yard setback** in the RAC zone is 6.0 metres.

(2) Minimum Rear Yard Setback

The required minimum **rear yard setback** in the RAC zone is 7.5 metres.

(3) Minimum Side Yard Setback

The required minimum **side yard setback** in the RAC zone is 7.5 metres.

(4) Rear Yard Setbacks and Side Yard Setbacks in Relation to the Height of an Apartment Building

Despite regulation 15.20.40.70(2) and (3), for any portion of an **apartment building** in the RAC zone with a height greater than 11.0 metres, the required minimum **rear yard setback** and required minimum **side yard setbacks** for each portion of the **building** above 11.0 metres in height must be increased by 1.0 metres for each additional 2.0 metres, or part thereof, above 11.0 metres in height.

15.20.40.80 Separation

(1) Distance Between Main Walls of the Same Residential Building

In the RAC zone, if a **residential building** has **main walls** where a line projected outward at a right angle from one of the **main walls** intercepts another **main wall** of the same **building**, the required minimum above-ground separation distance between those **main walls** is:

- (A) for any portion of the **building** with a height equal to or less than 11.0 metres:
 - (i) 5.5 metres if there are no openings to **dwelling units** in one or more of those **main walls**; and
 - (ii) 11.0 metres if each **main wall** has an opening to a **dwelling unit**; and
- (B) for any portion of the **building** with a height greater than 11.0 metres, a distance equal to the average height of those **main walls**.

(2) Distance Between Residential Buildings on the Same Lot

In the RAC zone, if two or more **residential buildings** are located on the same **lot**, the required minimum above-ground separation distance between the **main walls** of the respective **buildings** is:

- (A) for any portion of the **buildings** with a height equal to or less than 11.0 metres:
 - (i) 5.5 metres if there are no openings to **dwelling units** in the **main wall** of one or more of the **buildings**; and

- (ii) 11.0 metres if each **main wall** has an opening to a **dwelling unit**; and
 - (B) for any portion of the **buildings** with a height greater than 11.0 metres, a distance equal to the average height of those **buildings**.
- (3) Distance Between Residential and Non-Residential Buildings on the Same Lot
In the RAC zone, if a **non-residential building** is on the same **lot** as a **residential building**, the required minimum above-ground separation distance between the **main walls** of the **non-residential building** and the **residential building** is:
 - (A) 11.0 metres if there is an opening to a **dwelling unit** in the **main wall** of the **residential building** facing the **non-residential building**; and
 - (B) 7.5 metres in all other cases. [By-law: 0572-2014]
- (4) Apartment Building Separation from RD and RS Zones
An **apartment building** in the RAC zone must be at least 15.0 metres from a **lot** in an RD or RS zone. [By-law: 0572-2014]